

#	Case Name	Tentative
3	30-2020-01148828 Tran vs. Zenith Manufacturing Inc.	Demurrer to Complaint Defendant Modern Fittings, Inc.'s (MFI) Demurrer to Plaintiffs' Complaint is SUSTAINED with leave to amend. Defendant's Request for Judicial Notice of Secretary of State records showing it was incorporated on 2/3/20 is GRANTED. Plaintiffs filed the Complaint on 6/19/20. Plaintiffs filed a fictitious name amendment on 4/26/23 identifying MFI as "Doe 2." The Complaint does not allege any specific facts against Doe 2, other than general allegations that Does 1-50 were responsible for the conduct of the named Co-Defendants. (¶ 4.) MFI contends it cannot be liable for the wrongful termination of Plaintiffs in 2019 because it was not incorporated until 2020, and that Plaintiffs have failed to allege a basis for successor liability against it. Plaintiffs have not alleged facts supporting MFI's liability in the Complaint. The fictitious name amendment process under Code of Civil Procedure section 474 does not allow Plaintiffs to avoid the requirement to plead facts supporting each element of their claims against the fictitiously named Defendant. (See <i>Williams v. Sacramento River Cats Baseball Club, LLC</i> (2019) 40 Cal.App.5th 280, 286 [plaintiff must allege facts sufficient to establish every element of causes of action against defendant].) Here, the Complaint does not explain the relationship between MFI, its Co-Defendants, or Plaintiff in a manner that would allow MFI to defend itself against Plaintiff's claims or allow the Court to evaluate the merits of those claims. Therefore, the demurrer is sustained with leave to amend. Plaintiffs shall file and serve their amended complaint within 15 days of service of this order.
4	30-2022-01261142 Daverson vs. Buccola	1. Demurrer to Amended Complaint KELLY SHAWN GWIN'S DEMURRER TO THE SECOND AMENDED COMPLAINT Defendant Kelly Shawn Gwin's Demurrer to the Second Amended Complaint is SUSTAINED. Defendant's Request for Judicial Notice is GRANTED.